

UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

CLOSED

ANTHONY SCAFFIDI,

Appellant,

v.

KAREN DESOTO,

Appellee.

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: Civil Case No. 06-cv-03786 (FSH)

: Civil Case No. 06-cv-03787 (FSH)

: **ORDER**

: Date: September 11, 2007

HOCHBERG, District Judge.

This matter comes before the Court upon Appellant's Motion for Reconsideration of this Court's July 25, 2007 Orders affirming the Orders of the Bankruptcy Court; and

it appearing that a Motion for Reconsideration is governed by Local Civil Rule 7.1(I); and

it appearing that Local Civil Rule 7.1(I) provides for the reconsideration of an order if the motion is filed within 10 days after entry of the disputed order; and

it appearing that the purpose of a motion for reconsideration is "to correct manifest errors of law or fact or to present newly discovered evidence," Harsco Corp. v. Zlotnicki, 779 F.2d 906, 909 (3d Cir. 1985); see also, Shoenfeld Asset Mgt. v. Cendent Corp., 161 F. Supp. 2d 349, 352 (D.N.J. 2001), Yurecko v. Port Authority Trans-Hudson, 2003 WL 22001196 at * 2 (D.N.J. Aug. 18, 2003); and

it appearing that the Rule requires that the moving party set forth "concisely the matters or controlling decision which counsel believes the [Court] has overlooked," G-69 v. Degnan, 748 F. Supp. 274, 275 (D.N.J. 1990); and

it appearing that “a party seeking reconsideration must show more than a disagreement with the Court’s decision,” G-69 v. Degnan, 748 F. Supp. at 275; and

it appearing that “a mere ‘recapitulation of the cases and arguments considered by the court before rendering its original decision’” does not warrant reargument, Elizabethtown Water Co. v. Hartford Casualty Ins. Co., 18 F. Supp. 2d 464, 466 (D.N.J. 1998) (quoting Carteret Savings Bank F.A. v. Shushan, 721 F. Supp. 705, 709 (D.N.J. 1989)); and

it appearing that a court may grant a properly filed motion for reconsideration for one of three reasons: (1) an intervening change in the controlling law has occurred; (2) evidence not previously available has become available; or (3) it is necessary to correct a clear error of law or prevent manifest injustice, Database America v. Bellsouth Advertising & Publ’g., 825 F. Supp. 1216, 1220 (D.N.J. 1993) (citing Weyerhaeuser Corp. v. Koppers Co., 771 F. Supp. 1406, 1419 (D. Md. 1991)); and

it appearing that a motion for reconsideration is improper when it is used “to ask the Court to rethink what it had already thought through -- rightly or wrongly,” Ciba-Geigy Corp. v. Alza Corp., 1993 WL 90412, *1 (D.N.J. March 25, 1993); Oritani Sav. & Loan v. Fidelity & Deposit Co., 744 F. Supp. 1311, 1314 (D.N.J. 1990), rev’d on other grounds, 989 F.2d 635 (3d Cir. 1993); and

it appearing that because reconsideration of a judgment after its entry is an extraordinary remedy, motions to reconsider or reargue are granted “very sparingly,” Maldonado v. Lucca, 636 F. Supp. 621, 630 (D.N.J. 1986); and

it appearing that disagreement with the Court's initial decision as the basis for bringing a motion "should be dealt with in the normal appellate process, not on a motion for reargument,"

Florham Park Chevron, Inc. v. Chevron U.S.A., Inc., 680 F. Supp. 159, 163 (D.N.J. 1988); and

it appearing that (1) there has been no intervening change in controlling law; (2) Appellants have not presented new evidence that was not available for the Court to consider;¹ and (3) there has been no clear error of law or manifest injustice;

IT IS therefore on this 11th day of September, 2007,

ORDERED that Appellant's August 8, 2007 Motion for Reconsideration of the Court's July 25, 2007 Orders is **DENIED**.

/s/ Faith S. Hochberg
Hon. Faith S. Hochberg, U.S.D.J.

¹ Appellant argues that the fact that the Bankruptcy Trustee has now filed a complaint demonstrates that Appellant's arguments have merit. All of the conduct related to the Trustee's complaint occurred before the bankruptcy filing and the filing of the complaint is not a new fact. Furthermore, Appellant attempts to rely on oral argument statements made to the Bankruptcy Court. First, because Appellant argued these issues to the Bankruptcy Court, they were considered by the lower court. Second, Appellant did not submit any transcripts of the underlying oral argument, so cannot rely on those statements here. Moreover, any applications to reopen these issues should be made to the Bankruptcy Court.